

1.

CASE #	CASE NAME	HEARING NAME
CVRI2200797	CARBAJAL vs DESIRE HOME CARE, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested:

1. Confirm that defense counsel/defendant made a reasonable inquiry as to whether there are any other cases in which any class, collective, or representative claims similar to those in this case are made.
2. Discuss when payment to class members will be made, given the installment payment proposed.
3. Add to notice the full title and date of filing of the document to which the settlement agreement is attached (Declaration of Jill J. Parker in Support of Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement filed July 21, 2026, Ex. 1.).
4. Date for final approval hearing (order, ¶ 16).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304340	CUEVAS vs TMI AUTOMOTIVE PRODUCTS INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Is it necessary to attach the settlement agreement to the order/judgment? Perhaps refer to it by what document filed in the case it was attached to (Declaration of Arrash T. Fattahi filed December 29, 2025 as Ex. 3)?
2. Why does the judgment state that class members will release PAGA claims and not just the State and the named plaintiffs? Maybe add a reference to *Arias v. Superior Court* (2009) 46 Cal.4th 969 ("a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. . . . Accordingly, with respect to the recovery of civil penalties, nonparty employees as well as the government are bound by the judgment in an action brought under the act").
3. Add to order the fee split among plaintiffs' counsel's firms (and confirm that each plaintiff has given informed written consent to the fee split). CMO ¶ H.11
4. Add to judgment that the settlement checks will be valid for at least 90 days.
5. Add to judgment that the administrator will enclose the settlement check in an envelope stating, "YOUR CLASS ACTION SETTLEMENT CHECK IS ENCLOSED." CMO ¶ H.8.
6. Add to judgment that the administrator will send a reminder postcard to anyone who hasn't cashed their check within 60 days. CMO ¶ H.8
7. Add the language from the CMO re distribution to current employees of defendant. CMO ¶ H.8(d)